IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.1
CP (CAA)/1/230/AMR/2025 in
CA (CAA) No. 3 of 2024

IN THE MATTER OF:

1. CMR Textiles & Jewellers Pvt Ltd (Amalgamated Company/Petitioner 1)
2. Chandana Brothers Multi Complex Pvt Ltd (Amalgamaing Company-1/Petitioner 2)
3. CMR Shopping Mall Pvt Ltd (Amalgamaing Company-2/Petitioner 3)
4. MVR Shopping Mall Pvt Ltd (Amalgamaing Company-3/Petitioner 4)

Under Section: 230 to 232 of Companies Act, 2013

Order delivered on 16.10.2025

CORAM:

SHRI UMESH KUMAR SHUKLA
HON'BLE MEMBER (TECHNICAL)

SHRI KISHORE VEMULAPALLI
HON'BLE MEMBER (JUDICIAL)

PRESENT:

For the Petitioners: Mr. Kailash Nath PSS, Advocate

ORDER

Order pronounced and recorded vide separate sheets. The Petitioners are directed to issue notice and paper publication. List the matter on 04.12.2025, for further consideration.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH AT MANGALAGIRI

CP(CAA)/1/230/AMR/2025 (2nd Motion)
connected with
CA(CAA)/3/AMR/2024 (1st Motion)

Under Sections 230-232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with Rule 3 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF ARRANGEMENT AMONGST:

1. **CMR Textiles & Jewellers Private Limited**
   CIN:U52322AP2014PTC093604
   D.No. 29-2-22 to 25, OPP. Judge Court, Jail Road,
   Visakhapatanam, Andhra Pradesh- 530020
   Represented by its Whole-time Director Mr. Mavuri Venkata Ramana
   …. Petitioner Company 1/ Amalgamated Company

AND

2. **Chandana Brothers Multi Complex Private Limited**
   CIN:U55100AP2005PTC045941
   D.No. 29-2-23, OPP. Judge Court, Jail Road,
   Visakhapatnam, Andhra Pradesh- 530020
   Represented by its Whole-time Director Mr. Mavuri Venkata Ramana
   …. Petitioner Company 2/ Amalgamating Company 1

AND

3. **CMR Shopping Mall Private Limited**
   CIN:U52100AP2017PTC104856
   D.No.14-3-1,Nowroji Road, Pandimetta, Maharaipeta,
   Vishakhapatnam, Andhra Pradesh, India-530002
   Represented by its Director Mr. MSVSM Balaji
   ……. Petitioner Company 3/ Amalgamating Company 3

AND

4. **MVR Shopping Mall Private Limited**
   CIN:U52100AP2017PTC104799
   D.No.14-3-1,Nowroji Road, Pandimetta, Maharaipeta,
   Vishakhapatnam, Andhra Pradesh, India-530002
   Represented by its Director Mr. MSVSM Balaji
   …. Petitioner Company 4/ Amalgamating Company 3

Order delivered on: 16.10.2025

Coram: HON'BLE Mr. KISHORE VEMULAPALLI, MEMBER (JUDICIAL)
HON'BLE Mr. UMESH KUMAR SHUKLA, MEMBER (TECHNICAL)

Parties/Counsels Appearance:

For Petitioner **:** Mr. Kailash Nath PSS, Advocate

ORDER
PER: BENCH

This is a Joint Second Motion Company Petition has been filed under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (hereinafter referred to as the "Act") read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred to as the "Rules") by the CMR Textiles & Jewellers Private Limited (hereinafter referred to as the "Petitioner Company 1" or "Amalgamated Company"), Chandana Brothers Multi Complex Private Limited (hereinafter referred to as the "Petitioner Company 2" or "Amalgamating Company 1"), CMR Shopping Mall Private Limited (hereinafter referred to as the "Petitioner Company 3" or "Amalgamating Company 2") and MVR Shopping Mall Private Limited (hereinafter referred to as the "Petitioner Company 4" or "Amalgamating Company 3") (hereinafter Petitioner Company 1 to 4 collectively called as the "Petitioners") for sanction of the Scheme of Arrangement amongst Petitioner Companies and their respective shareholders and creditors (hereinafter referred to as the "Scheme"). The copy of the Scheme has been annexed at Annexure -AL with the Petition.

2. The Petitioner Companies have also prayed to issue interim directions for issuance of the notice of the Petition hearing to the Central Government i.e. Regional Director, Official Liquidator, Registrar of Companies for Andhra Pradesh, Income Tax

Authorities and other statutory authorities for seeking their representations and the publication of the notice of hearing of the Petition in the newspapers namely 'Hans India' in English and 'Andhra Jyothi' in Telugu.

3. The Petitioners had filed Joint First Motion Company Application bearing No. CA(CAA)/3/230/AMR/2024 and this Tribunal vide order dated 16.01.2025 allowed the prayers for dispensing with the requirement of convening the meetings of Equity Shareholders, Secured Creditors and Unsecured Loan Creditors of the Petitioner Companies 1 to 4, Customers of the Petitioner Company 1 as well as Unsecured Trade Creditors of the Petitioner Company 3 for the reasons recorded therein.

4. This Tribunal vide above Order dated 16.01.2025 further directed to convene the separate meetings of the Unsecured Trade Creditors of the Petitioner Companies 1, 2 and 4 on 08.03.2025 and also appointed the Chairman and Scrutiniser for conducting the said meetings.

(i) Mr. Naresh Kumar Sangam as the Chairperson and Mr. M. B. Suneel as the Scrutinizer to conduct the meeting of the Unsecured Trade Creditors of the Petitioner Company 1,

(ii) Mr. M. Parameswara Reddy as the Chairperson and Mr. Srikant Kumar P as the Scrutinizer to conduct the meeting of the Unsecured Trade Creditors of the Petitioner Company 2, and

(iii) Mr. Samireddy Sai Sarat Chandra as the Chairperson and Mr. Manish Kumar Singhania as the Scrutinizer to conduct the meeting of the Unsecured Trade Creditors of the Petitioner Company 4.

The Order also directed for publication, at least one month before the date of the above meetings, of an advertisement in 'Hans India' (in English) and 'Andhra

Jyothi' (in Telugu) regarding convening the meetings and directed the Chairmen of the meetings to file an affidavit not less than seven days before the meeting to report regarding issuance of the notices and advertisement of the meeting and also to report to this Tribunal on the results of the meeting in Form CAA-4 duly verified by his affidavit with seven working days after the meeting. The Petitioner Companies were also directed to send notice by Registered Post or Speed Post or by hand delivery to (a) the Central Government through the Regional Director, South Eastern Region, (b) the Registrar of Companies, Andhra Pradesh (c) the Income Tax Authorities and (d) the Official Liquidator.

5. In compliance of this Tribunal Order dated 16.01.2025, the Petitioner Company 1/ Amalgamated Company filed Compliance Memo dated 24.02.2025 vide Diary No. 306 Dated 25.02.2025 stating as below:

(i) The Amalgamated Company, as per the Oreder dated 16.01.2025 of this Tribunal, served notice of convening the meeting through speed post to 262 Unsecured Trade Creditors on 02.02.2025 and by hand delivered to 1 Unsecured Trade Creditor on 05.02.2025 and also through e-mail to all 263 Unsecured Trade Creditors on 04.02.2025.

(ii) The notice of the meeting was published by the Amalgamated Company in 'Hans India' (in English) on 04.02.2025 and 'Andhra Jyothi' (in Telugu) on 05.02.2025.

(iii) The Amalgamated Company served the notice through speed post on 03.02.2025 and by hand delivery on 04.02.2025 to the Central Government through the Regional Director, South Eastern Region; the Registrar of Companies, Andhra Pradesh; the Income Tax Authorities; and the Official Liquidator.

6. In compliance of this Tribunal Order dated 16.01.2025, the Petitioner Company 2/ Amalgamating Company 1 filed Compliance Memo vide Diary No. 315 Dated 27.02.2025 stating as below:

(i) The Amalgamating Company 1, as per the Oreder dated 16.01.2025 of this Tribunal, served notice of convening the meeting through speed post and hand delivery to Unsecured Trade Creditors on 02.02.2025 and also through e-mail to Unsecured Trade Creditors on 04.02.2025.

(ii) The notice of the meeting was published by the Amalgamating Company 1 in 'Hans India' (in English) on 04.02.2025 and 'Andhra Jyothi' (in Telugu) on 05.02.2025.

(iii) The Amalgamating Company 1 served the notice through speed post on 03.02.2025 and by hand delivery on 04.02.2025 to the Central Government through the Regional Director, South Eastern Region; the Registrar of Companies, Andhra Pradesh; the Income Tax Authorities; and the Official Liquidator.

7. In compliance of this Tribunal Order dated 16.01.2025, the Petitioner Company 4/ Amalgamating Company 3 filed Compliance Memo dated 28.02.2025 vide Diary No. 540 Dated 02.04.2025 stating as below:

(i) The Amalgamating Company 3, as per the Order dated 16.01.2025 of this Tribunal, served notice of convening the meeting to Unsecured Trade Creditors through speed post/ hand delivery and e-mail on 03.02.2025.

(ii) The notice of the meeting was published by the Amalgamating Company 3 in 'Hans India' (in English) on 04.02.2025 and 'Andhra Jyothi' (in Telugu) on 05.02.2025.

(iii) The Amalgamating Company 3 served the notice through speed post on and by hand delivery to the Central Government through the Regional Director, South Eastern Region on 04.02.2025 respectively; the Registrar of Companies, Andhra Pradesh on 06.02.2025 and 05.02.2025 respectively; the Income Tax Authorities on 06.02.2025 and 04.02.2025 respectively; and the Official Liquidator on 04.02.2025.

8. In compliance of this Tribunal Order dated 16.01.2025, the Chairman of the above meetings also filed their reports as summarised below:

(i) The Chairman of the above meeting for the Amalgamated Company/ Petitioner Company 1 filed his report dated 15.03.2025 vide Diary No. 425 dated 18.03.2025 according to which the resolution was passed by the Unsecured Trade Creditors of the Amalgamated Company with requisite majority. The relevant extract of the above report are reproduced below:

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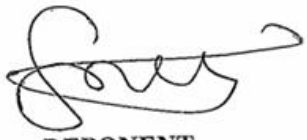
2. The said meeting was attended personally by 57 (Fifty Seven) Unsecured Trade Creditors 52 in person and 5 through proxy) of CMR Textiles & Jewellers Private Limited (Amalgamated Company) to whom the CMR Textiles & Jewellers Private Limited (Amalgamated Company) owes an amount of Rs. 167,06,24,462/- (Rupees One Hundred and Sixty Seven Lakhs Six Lakhs Twenty Four Thousand Four Hundred and Sixty Two only) representing 49.43% in value of the total value of Unsecured Trade Creditors of CMR Textiles & Jewellers Private Limited (Amalgamated Company) to whom the Notice for convening this meeting was sent, as directed by the Hon'ble Tribunal.

3. Accordingly, the specified quorum as directed by this Hon'ble Tribunal for the purpose of proper constitution of the meeting of the Unsecured Trade Creditors of CMR Textiles & Jewellers Private Limited (Amalgamated Company) were present.

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9. The resolution as set out in the Notice of the Meeting of Unsecured Trade Creditors of CMR Textiles & Jewellers Private Limited (Amalgamated Company) was passed by the Unsecured Trade Creditors of CMR Textiles & Jewellers Private Limited (Amalgamated Company) with requisite majority in accordance with the provisions of section 230(6) of the Companies Act, 2013 and rules thereunder.

Date: 15.03.2025
Place: Hyderabad



DEPONENT

Naresh Kumar Sangam
Chairperson Appointed by Hon'ble National Company Law Tribunal, Amaravathi Bench for the meeting of Unsecured Trade Creditors of Amalgamated Company

(ii) The Chairman of the above meeting for the Amalgamating Company 1/ Petitioner Company 2 filed his report dated 15.03.2025 vide Diary No. 424 dated 18.03.2025 according to which the resolution was passed by the Unsecured Trade Creditors of the Amalgamating Company 1 with requisite majority. The relevant extract of the above report are reproduced below:

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2. The said meeting was attended personally by 8 (Eight) Unsecured Trade Creditors (Six in person and two through proxy) of Chandana Brothers Multi Complex Private Limited (Amalgamating Company 1) to whom the CMR Textiles & Jewellers Private Limited (Amalgamated Company) owes an amount of Rs. 97,13,735/- (Rupees Ninety Seven Lakhs Thirteen Thousand Seven Hundred and Thirty Five only) representing 15.10% in value of the total value of Unsecured Trade Creditors of Chandana Brothers Multi Complex Private Limited (Amalgamating Company 1) to whom the Notice for convening this meeting was sent, as directed by the Hon'ble Tribunal.

3. Accordingly, the specified quorum as directed by this Hon'ble Tribunal for the purpose of proper constitution of the meeting of the Unsecured Trade Creditors of Chandana Brothers Multi Complex Private Limited (Amalgamating Company 1) were present.

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9. The resolution as set out in the Notice of the Meeting of Unsecured Trade Creditors of Chandana Brothers Multi Complex Private Limited (Amalgamating Company 1) was passed by the Unsecured Trade Creditors of Chandana Brothers Multi Complex Private Limited (Amalgamating Company 1) with requisite majority in accordance with the provisions of section 230(6) of the Companies Act, 2013 and rules thereunder.

Date: 15/03/2025
Place: Hyderabad

M. Parameshwar Reddy
DEPONENT
M. Parameshwar Reddy
Chairperson Appointed by Hon'ble National Company Law Tribunal, Amaravathi Bench for the meeting of Unsecured Trade Creditors of Amalgamating Company 1

(iii) The Chairman of the above meeting for the Amalgamating Company 3/ Petitioner Company 4 filed his report dated 20.03.2025 vide Diary No. 540 dated 02.04.2025 according to which the resolution was passed by the Unsecured Trade Creditors of the Amalgamating Company 3 with requisite majority. The relevant extract of the above report are reproduced below:

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2. Thesaidmeetingwasattendedpersonallyby6(Six)UnsecuredTradeCreditors (Five in person and one through proxy) of MVR Shopping Mall Private Limited (Amalgamating Company-3) to whom the CMR Textiles & Jewellers Private Limited (Amalgamated Company) owes an amount of Rs. 2,94,07,444/- (Rupees Two Crore Ninety-Four Lakhs Seven Thousand Four Hundred and Forty-Four only) representing 100%invalueofthetotalvalueofUnsecuredTradeCreditorsofMVRShoppingMall Private Limited (Amalgamating Company-3) to whom the Notice for convening this meeting was sent, as directed by the Hon'ble Tribunal.

3. Accordingly, the specified quorum as directed by this Hon'ble Tribunal for the purposeofproperconstitutionofthemeetingoftheUnsecuredTradeCreditorsofMVR Shopping Mall Private Limited (Amalgamating Company-3) were present.

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9. The resolution as set out in the Notice of the Meeting of Unsecured Trade Creditors of MVR Shopping Mall Private Limited (Amalgamating Company-3) was passed by the Unsecured Trade Creditors of MVR Shopping Mall Private Limited (Amalgamating Company-3) with the requisite majority in accordance with the provisions of section 230(6) of the Companies Act, 2013 and rules thereunder.

DATE: 20-03-2025
PLACE: Visakhapatnam

DEPONENT

Samireddy Sai Sarat Chandra Chairperson
Appointed by Hon'ble National Company Law Tribunal, Amaravathi Bench for the meeting of Unsecured Trade Creditors of Amalgamating Company 3

9. During the proceedings of Second Motion Petition, this Tribunal, vide its Order dated 04.09.2025, directed the Petitioner Companies to file an affidavit regarding applicability of the Real Estate Regulatory Authority (hereinafter referred to as the "**RERA**") and Competition Commission of India (hereinafter referred to as the "**CCI**") along with relevant proposition of facts and law within one week.

10. The Petitioner Companies, vide Diary No. 1819 dated 10.09.2025, filed a common affidavit stating that all the Petitioner Companies form part of the same group and are engaged in the business of retail trade in textiles, readymade garments, gold and jewellery in the State of Andhra Pradesh. The Petitioner Company Nos. 2 to 4 have merely taken land on lease from the Andhra Pradesh State Road Transport Corporation for a period of approximately 30 years and have constructed malls thereon, which are subsequently leased out. Accordingly, the said activity does not constitute a "real estate project" within the meaning of the Real Estate (Regulation and Development) Act, 2016, and therefore, the provisions of RERA are not applicable to the present case.

11. The Petitioner Companies, vide above common affidavit also stated as per Notification No. S.O. 1130(E) dated 07.03.2024, the thresholds prescribed under Section 5(c)(i)(A) of the Competition Act, 2002, pertaining to value of assets and turnover, have been enhanced by 150%. Consequently, the revised thresholds stand at Rs.2,500 crores for value of assets and Rs.7,500 crores for turnover. In the present case, even after the proposed amalgamation, as on 31.03.2024, the value of assets of the enterprise is Rs.2,242.12 crores and the turnover is Rs.2,574.41 crores. Hence, the transaction does not attract the provisions of the Competition Act, 2002.

ANALYSIS AND FINDING

12. In compliance of this Tribunal Order dated 16.01.2025, the Chairman of the meeting for the Amalgamating Company 3/ Petitioner Company 4 filed his report vide Diary No. 540 dated 02.04.2025, which is beyond the period of seven days prescribed in this Tribunal Order dated 16.01.2025. However, there is no delay condonation application by the Chairman of the meeting of the Amalgamating Company 3, for which the necessary steps is required to be taken.

DIRECTIONS:

13. Having regard to the above, before finally examining the matter for approval of the proposed Scheme, this Tribunal directs the following-

(i) The next date of hearing of the petition shall be 04.12.2025 for the consideration of the Scheme.

(ii) The Petitioner Companies shall serve the notice of the Petition in Form No. CAA-3 along with a copy of the Scheme, the explanatory statement and the disclosures as required under the Rules on the following Authorities/ regulators namely (i) Central Government through Regional

Director (South Eastern Region), Ministry of Corporate Affairs; Hyderabad; (ii) Registrar of Companies, Andhra Pradesh, Vijayawada; (iii) the Official Liquidator (attached to Andhra Pradesh and Telangana High Court); (iv) Income Tax Department, through concerned Principal Chief Commissioner of Income Tax, where the Petitioner Companies are assessed by mentioning the PAN of the respective Company; and (v) to such other statutory authorities/ sectoral regulators or authorities, governing the business of the Petitioner Companies, if any. The notice shall also state that the same is pursuant to section 230(5) of the Companies Act, 2013 and if the authorities desire to make any representation, the same shall be sent to the Tribunal within a period of thirty days from the date of receipt of such notice and copy of such representation shall simultaneously be sent to the concerned companies and in case no representation is received within the stated period of thirty days by the Tribunal, it shall be presumed that theses authorities have no representation to make on the proposed scheme.

(iii) The Petitioner Companies shall advertise the notice of hearing of the Petition not less than ten days before the date fixed for the hearing in the newspapers namely “Hans India” (Vishakhapatnam Edition) in English language and “Andhra Jyothi” (Vishakhapatnam Edition) in Telugu language.

(iv) The Petitioner Companies shall also publish the notice on their respective website(s), if any.

(v) The Petitioner Companies shall also serve the notice to all the persons/ entities of Petitioner Companies, who have outstanding debt amounting

to not less than five per cent. of the total outstanding debt as per the latest audited financial statement of the respective Petitioner Companies.

(vi) The notice of the hearing of the Petition shall also be served to the objectors or to their representatives and to the Central Government and other authorities, who have made representation during meetings in the first motion and have desired to be heard in their representation.

(vii) The Petitioner Companies shall file an affidavit in compliance of all the conditions laid down herein along with original proof of service to all the authorities.

(viii) The Petitioner Companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings.

(ix) The Petitioner Companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

(x) The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

14. Let a copy of the order be provided to the Ld. Counsel of the Petitioner Companies.

Sd/-
(Umesh Kumar Shukla)
Member (Technical)

Sd/-
(Kishore Vemulapalli)
Member (Judicial)

RSN (PS)